DIGITALAIKART ORIGINAL

THE INDIAN

DIVORCE & SEPARATION PLAYBOOK

2026-27

The complete guide to ending a marriage in India - legally, financially, and with your dignity intact.

28 chapters | 6 printable worksheets | every rule verified October 2026

HINDU MARRIAGE ACT · SPECIAL MARRIAGE ACT · DIVORCE ACT · BNSS · PWDVA · BNS

DIGITALAIKART ORIGINAL

The Indian Divorce & Separation Playbook

2026-27 Edition

A practical, source-checked guide to the five laws that govern divorce in India, the settlement that decides almost everything, the money, the children, the criminal complaint that runs alongside, and the thirty days after the decree when the paperwork either gets finished or quietly goes wrong.

Inside	
Chapters	28, across eight parts
Worksheets	Six printable forms, including a settlement term sheet and a parenting calendar
Verified against	The statutes, the Supreme Court's own orders, the Department of Justice dashboard, and the Passport Seva document requirements
Current as of	October 2026, including the Supreme Court's 2 February 2026 order in Misha Somani v. Rituraj Somani

What this book is, and is not

It is an information guide: what the law says, what the courts have held, what things cost, and where people go wrong. It is not legal advice and it is not a substitute for an advocate who knows your file. Reading it will not make you your own lawyer — it will make you a client who cannot be taken for a ride.

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How to use this book

You do not have to read this from page one. Find your situation, read that part, and come back for the rest when you need it.

If this is you	Start here
You have decided, and your spouse agrees too	Part 2, from Chapter 4. Read Chapter 2 first so you file under the right law.
You want out but your spouse will not agree	Chapter 3, then Part 3. Chapter 10 explains what the long game really looks like.
Money is the fight	Part 4. Chapter 11 tells you which of four doors to knock on.
There are children	Part 5. Do not sign anything before you have read Chapter 17.
There is violence, or a threat of it	Chapter 19 today, before anything else. Your safety comes before paperwork.
There is a police complaint already	Chapter 20 and Chapter 21. Then Chapter 4 — settlements are how these end.
The decree is already passed	Part 7. The 30-day admin reset is where most people lose money quietly.

> **Read these two pages first, whatever your situation**
> Two out of three expensive divorces in India are expensive for a reason that was decided in the first month: the wrong court, the wrong section, or a settlement signed before anyone listed what was actually on the table. Chapter 1 gives you the honest map of what you are walking into. Chapter 2 tells you which of five different laws governs your marriage — and they are genuinely different. A Christian couple needs two years of separation before a mutual-consent petition is even maintainable; a Hindu couple needs one. File in the wrong place and you lose months to a returned petition, not weeks.

A note on what this book is

This is an information guide, written to help you understand the system, ask better questions and avoid the mistakes that cost people lakhs. It is not legal advice, and it is not a substitute for a lawyer who knows your file, your State's courts and your family's facts. Nothing here creates a lawyer-client relationship. Where the law differs from State to State, this book says so instead of pretending there is one answer.

Every section number, time limit, fee structure and judgment in these pages was checked against the statute or the court's own order in October 2026. Where a rule is being challenged in court or is likely to change, the book says that too. Nothing in here is invented to fill space — if a number could not be verified, it is not in the book.

The law changes. Before you file, confirm the current position with your advocate or the free legal aid office at your district court.

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The six-page worksheet pack at the back

A settlement term sheet, an asset and liability disclosure sheet, a documents checklist, a case tracker, a two-household budget and a twelve-month parenting calendar. Print them. Fill them in by hand. Every one of them exists because someone, somewhere, lost money by not writing that page down.

PART ONE

Orientation

Before you file a single page, you need three things straight: what the process actually is, which law applies to your marriage, and which of five routes you are choosing. Everything after this is execution.

CHAPTER 1

The honest map: what a divorce in India actually involves

Almost nobody is told, at the start, that a divorce in India is not one proceeding. It is a stack of separate proceedings that can run at the same time, in different courts, on different clocks.

Here is the stack. Your matrimonial petition — the divorce itself — goes to the Family Court. A maintenance application may go to the same Family Court under the Hindu Marriage Act, or to a Magistrate under section 144 of the Bharatiya Nagarik Suraksha Sanhita, or both. A domestic violence application goes to a Magistrate under the Protection of Women from Domestic Violence Act. A custody dispute can sit inside the divorce petition or be filed separately under the Guardians and Wards Act. A criminal complaint about cruelty goes to the police and then to a criminal court. A property or loan dispute may need a civil suit.

Five courts. Five timelines. One family. Most people discover this in month eight, which is exactly when they cannot afford to.

The reason to understand the stack on day one is simple: a good settlement collapses the whole stack into one document and one court. A bad one leaves four of the five proceedings alive and paying rent.

How much of this is happening around you right now

According to the Department of Justice's own family court dashboard, 11,95,738 family cases were pending across India's family courts — nearly twelve lakh families in the system at one point in time. Kerala's family courts received 35,238 divorce petitions in 2025 alone, an increase of roughly 87 per cent over six years, according to family court data obtained under the Right to Information Act and reported in June 2026. Uttar Pradesh had 4,07,130 family cases pending at the end of 2025. You are not the first person to do this, and the system's habits are known.

The four things that decide what this costs you

Factor	Why it dominates the outcome
Whether both of you agree	Mutual consent is measured in months. A contested divorce is measured in years. Nothing else you do comes close to this in effect.
Whether there are children	Custody and visitation turn one decision into a recurring calendar, and every later disagreement reopens the file.
Whether money is disputed	Interim maintenance applications, disclosure affidavits and enforcement proceedings each have their own cost in fees, time and temper.
Whether a criminal complaint exists	A cruelty complaint runs on its own track, does not decide the divorce, and usually has to be closed separately — even after you settle.

Three clocks, not one

The legal clock is the one everyone watches. The money clock is the one that hurts: two households on one income, plus fees, plus the interest on a loan nobody refinanced. The emotional clock is the one that makes people sign things in month three that they regret in year three. The single most useful discipline in this whole process is refusing to let the emotional clock set the pace of the legal one.

> **The one decision that matters more than all the others**
>
> Settle everything before you file. Not everything in principle — everything in numbers, dates and names. Alimony as a figure. Child support as a figure with an annual increase. The gold as a list with weights. The home loan as a named person with a date. The pending cases as case numbers to be withdrawn. A petition filed on a complete settlement takes months. A petition filed on a hope takes years, because every gap in it becomes a hearing.

What has genuinely improved

Courts in 2026 are faster on mutual consent than they were a decade ago, and it is worth knowing why. The Supreme Court has repeatedly held that the six-month cooling-off period between the two motions is directory, not mandatory, and can be waived where the marriage is genuinely over and everything is settled. In February 2026 the Court went further still — in Misha Somani v. Rituraj Somani it set aside a High Court order that had refused a waiver, and granted the decree itself. District courts now e-file, hear some matters by video conference, and publish cause lists online. None of this makes divorce easy. It does make a well-prepared mutual consent petition genuinely faster than it used to be.

CHAPTER 2

Which law governs your marriage

India does not have one divorce law. It has five, plus a new State code. The section you file under decides how long you must have been separated, what you must prove, and what you can ask for.

Your marriage	The law that governs it	Mutual consent	Separation needed
Hindu, Buddhist, Jain or Sikh; married by ceremony or registered under the Hindu Marriage Act	Hindu Marriage Act, 1955	Section 13B	One year
Any couple registered under the Special Marriage Act — court marriages, interfaith marriages, and couples who chose the secular route	Special Marriage Act, 1954	Section 28	One year
Christian	Divorce Act, 1869 (the Indian Divorce Act)	Section 10A	Two years
Parsi	Parsi Marriage and Divorce Act, 1936	Section 32B	One year
Muslim	Muslim personal law, the Dissolution of Muslim Marriages Act, 1939 for a wife, and the Muslim Women (Protection of Rights on Marriage) Act, 2019	Mubarat (by agreement); khula	Not fixed by statute
Resident of Uttarakhand, on or after 27 January 2025	Uniform Civil Code, Uttarakhand, 2024	As provided in the Code	As provided in the Code

Why getting this wrong is expensive

A Christian couple who file a mutual consent petition after one year of separation have their petition returned — section 10A requires two years, and a Family Court cannot waive a substantive eligibility condition just because both parties are willing. A couple who married in a registered court marriage but describe themselves as Hindu in the petition have filed under the wrong statute. A Hindu couple whose marriage was solemnised in a temple, with no registration at all, are still governed by the Hindu Marriage Act, because the Act applies to the ceremony, not the certificate.

So the first question is not "what do I want". It is "what does my marriage certificate say, and if there is no certificate, how was the marriage solemnised". Pull that document out before you meet any lawyer.

The Special Marriage Act catches people out

If you registered your marriage under the Special Marriage Act — which is what a court marriage is — then the Special Marriage Act governs your divorce, even if both of you are Hindu and even if you also had a religious ceremony afterwards. This is not a technicality; it changes the grounds, the maintenance provisions and the section numbers you will use.

Uttarakhand is now different

Uttarakhand became the first State to bring a Uniform Civil Code into force, on 27 January 2025, and has amended it twice since — by an ordinance on 26 January 2026 and an amending Act on 7 April 2026. For marriages and divorces in Uttarakhand the Code, not the personal law, applies. Two features matter in practice: marriage registration is compulsory, and a decree of divorce or nullity has to be submitted for registration with the sub-registrar within sixty days of the decree becoming final. Live-in relationships are separately registrable. If you live in Uttarakhand, or married there, read the State portal before you file anywhere.

A five-minute check that saves months

- Find your marriage certificate. Read which Act it was registered under.
- If there is no certificate, write down the date, the city, and how the ceremony was performed, and who attended.
- Check your and your spouse's religion as recorded on the certificate — not as you would describe yourself today.
- Check whether either of you has ever lived in Uttarakhand since January 2025.
- Write one line: "Our marriage is governed by _____, so we file under _____." Take that line to your first meeting.

CHAPTER 3

The five routes, compared honestly

There are five ways this ends. Only one of them is fast, and it needs two people to say yes.

Route	What it is	Realistic time	Use it when
Mutual consent	A joint petition under section 13B HMA, 28 SMA or 10A Divorce Act. Two motions, a cooling-off period that can be waived, then a decree.	One month with a waiver; typically four to nine months without	You both want out and can agree on money, children and property.
Contested divorce	One spouse petitions on a fault ground — cruelty, desertion, adultery and so on — and proves it.	Two to six years, first court to final appeal	The other side will not consent, or will not settle on fair terms.
Judicial separation	A decree that you live apart, without dissolving the marriage. Section 10 HMA, section 22 SMA.	Similar to a contested divorce	You want legal separation and financial orders but cannot or will not divorce yet.
Nullity	A declaration that the marriage was void from the start (for example a bigamous marriage) or voidable (for example fraud or impotence). Sections 11 and 12 HMA.	One to three years	The marriage itself was legally defective, not merely unhappy.
Supreme Court, Article 142	The Supreme Court dissolving a marriage on the ground of irretrievable breakdown, using its constitutional power to do complete justice.	Not a route you can start	The Court is already seized of your matter, usually through a transfer petition.

The one thing to understand about the last row

Every few months a news story says the Supreme Court has allowed divorce on the ground of irretrievable breakdown, and someone concludes that they can now ask a Family Court for a divorce because the marriage has broken down. You cannot. Irretrievable breakdown is not a ground listed in the Hindu Marriage Act, and a Family Court has no power to add one. In Shilpa Sailesh v. Varun Sreenivasan (2023) a Constitution Bench confirmed that the Supreme Court may dissolve a marriage on that ground under Article 142 — but that power belongs to the Supreme Court, and it is exercised in matters already before it, most often transfer petitions where the parties have been litigating for years. It is an exit of last resort, not a shortcut you can buy.

Why mutual consent wins whenever it is available

In a mutual consent divorce nobody has to prove anything about anybody. There is no evidence, no witnesses, no cross-examination, no finding of cruelty recorded against a person who will one day have to explain it to a child. You are not asking the court to judge your marriage; you are asking it to record an agreement. That is why the settlement in Chapter 4 is the real work, and the hearings are administration.

The honest cost of choosing to fight

A contested divorce is not merely slower. It is more expensive in a way that is easy to underestimate, because the fees are the smallest part. The real cost is that interim maintenance, custody applications, adjournments and appeals each generate their own hearings, and every hearing is a day of leave, a travel cost and a lawyer's appearance fee. Two people spending three years and several lakh rupees to arrive at roughly the settlement a mediator could have produced in three months is the most common outcome in Indian family litigation — and both of them will tell you afterwards that they wish they had not.

When fighting is the right answer

This is not an argument for settling at any price. Fight when the other side is concealing income or assets and will not disclose them. Fight when a child's safety is at stake. Fight when you are being asked to give up a right you cannot rebuild — a home, a career, custody. Fight when the offer on the table is designed to make you dependent. But fight with a plan and a budget, not with a feeling.

PART TWO

Divorce by mutual consent

This is the route that works when two people have stopped wanting the same marriage. The court does not investigate your reasons. It checks that you both mean it, that you have been apart long enough, and that your agreement covers everything. Almost all of the value you get out of this process is created before you enter the courtroom.

CHAPTER 4

The settlement: sixteen terms your MOU must nail down

The court will not design your settlement. It will read the one you bring, satisfy itself that nobody was forced, and pass a decree in those terms. What you write here is what you live with.

The document has several names — memorandum of understanding, settlement agreement, joint settlement deed, compromise deed. It is usually annexed to the joint petition and, once the decree is passed, its terms become part of the court's order. That last point is the one to hold on to: a term you write badly does not disappear. It becomes an order you may have to fight for years to change.

Sixteen terms. Go through them one at a time, and do not move on until each has a number, a date or a name in it.

Term	What it must say
1. Date of separation	The exact date you began living separately, and what proves it — separate addresses, rent agreements, utility bills, employer records. The petition needs this date; the cooling-off waiver turns on it.
2. Permanent alimony	A figure. Lump sum or monthly, and if monthly, for how long and indexed how. Say which bank account and on which date of the month.
3. Payment schedule	Every payment, with a date and a mode. "Rs. 4,00,000 on or before 31 March 2027 by RTGS to account number _____" is a term. "Reasonable alimony" is not.
4. Children: custody	Who the children live with, and what the other parent's legal rights are — school, medical, travel consent, religious upbringing.
5. Children: the calendar	Weekends, half of every school holiday, festivals by name and rotation, birthdays, summer break, video calls. Write the calendar, not the principle.
6. Child support	A monthly figure per child, who pays school fees directly, medical costs, and an annual increase — typically a stated percentage, so inflation does not force you back to court.
7. Education fund	Whether a fixed sum or a policy is set aside for higher education, who holds it, and who it belongs to.
8. Stridhan and jewellery	An itemised list with weights and photographs, and a date by which it is returned. Vague promises about "her jewellery" are how gold disappears.
9. Household goods	Who takes what. Cars, appliances, furniture, the dog. Yes, the dog.
10. Immovable property	Who keeps the house or flat, who pays the EMI, whether there is a buyout and by when, and what happens if the buyout is not paid.
11. Joint loans and cards	Which loan is closed by whom and by when, plus an indemnity clause: the paying spouse indemnifies the other against the joint loan. This clause is the difference between a clean exit and a credit score in ruins.
12. Accounts and investments	Bank accounts to be closed, fixed deposits, mutual funds, demat holdings, insurance policies — and the nomination on each.
13. Withdrawal of proceedings	Every pending case listed by court, case number and CNR number, to be withdrawn or closed. Do not write "all cases will be withdrawn".
14. No-defamation, no-interference	Neither party will defame the other or interfere with the other's employment, family or new relationships.

Term	What it must say
15. Consequence of breach	What happens if a term is broken — a stated penalty, or the right to revive a specific claim. A term with no consequence is a request.
16. Confidentiality and jurisdiction	That the terms stay private, and which court's decree it is.

The five gaps that cause the most damage

1. **An open term.** "Alimony to be decided later" or "as mutually agreed" is not a settlement, it is an argument you have agreed to have later — in court, at your cost.
2. **No escalation on child support.** A fixed Rs. 15,000 a month in 2026 is a very different number in 2036. Index it in the document.
3. **No indemnity on the joint home loan.** The bank is not a party to your divorce. If your name stays on the loan, you stay liable — and the default lands on your credit report, not theirs.
4. **Withdrawing the criminal complaint before the money arrives.** Once the complaint is gone, your leverage is gone. Sequence: money received, then withdrawal.
5. **No date on the stridhan return.** "At the time of the second motion" is a date. "When things settle down" is not.

> **The clause that does the most work in practice**
>
> *"This settlement constitutes the full and final settlement of all claims, monetary and otherwise, between the parties and their families arising out of the marriage and its dissolution."*
>
> This sentence does two jobs. It tells the court the matter is genuinely settled — which is a condition the Supreme Court set out for waiving the cooling-off period. And it characterises the money as a final discharge of matrimonial claims, which is the factual basis on which a lump-sum payment is treated as a capital receipt for tax. Both are worth having.

CHAPTER 5

Step by step, from first motion to decree

Six stages. Two of them require you both to be physically present. Knowing which stage you are at is the difference between patience and panic.

Stage 0 — Before you file (two to eight weeks)

Settle the sixteen terms. Draft the memorandum of understanding. Collect the documents in Chapter 7. Decide which court. If there is any chance of reconciliation you want to attempt, attempt it now, because the waiver application later will ask whether mediation has failed.

Choosing the court is a real choice

A petition under the Hindu Marriage Act may be filed where the marriage was solemnised, where the parties last lived together, or where the wife resides. The Special Marriage Act has its own rules, and the Divorce Act's are different again. Because the wife has an additional option, many couples end up filing in her city — which is often also the city with the better family court. Court speed varies enormously: a district with a dedicated family court and an active mediation centre moves at a different pace from one with a single overworked judge. Ask your advocate which of your available courts is currently clearing mutual consent matters fastest. It is a legitimate question.

Stage 1 — Filing

The joint petition is filed with the settlement deed annexed, affidavits of both parties confirming free consent, and the supporting documents. Court fees for matrimonial petitions are nominal — in most States a few hundred rupees, set by the State's court fees law — and are not what makes this expensive. Most district courts now accept e-filing, and the petition is registered and given a CNR number you can track on the e-courts portal.

Stage 2 — First motion

Both of you appear. The court records your statements on oath: that the marriage was performed, that you have lived separately for the statutory period, that you cannot live together, and that you consent to the dissolution. The court may refer you to the court-annexed mediation centre or to a counsellor — under section 9 of the Family Courts Act it is obliged to try to bring about a settlement. At this stage you can also move the waiver application (Chapter 6).

Stage 3 — The cooling-off period

Under section 13B(2), the second motion cannot be moved before six months from the first motion, and not later than eighteen months. If the second motion is not moved within eighteen months, the petition lapses. The period exists so that nobody divorces in a temper. It is also waivable — see the next chapter.

Stage 4 — Second motion

Both appear again, and both must still consent. This is the single most important practical risk in the whole process. The Supreme Court held in Sureshta Devi v. Om Prakash (1991) that consent must subsist at both motions: if either spouse withdraws consent at any time before the decree is passed, the petition cannot proceed and is dismissed. A party who changes their mind does not need a reason the court will scrutinise. This is why the settlement must be genuinely acceptable to both people, not merely signed by both people.

Stage 5 — Decree

The court records the second statements and passes the decree, dissolving the marriage from the date of the decree. Take certified copies — at least four. You will need them for the passport, the bank, the registrar and, one day, a school.

Stage 6 — After the decree

An appeal against a decree lies to the court to which appeals ordinarily lie from that court, and the limitation period is ninety days. In practice most people wait out that window before remarrying. Registration of the decree is compulsory in Uttarakhand (within sixty days of it becoming final) and advisable elsewhere; the administrative reset in Chapter 22 is what actually closes the loop.

Hearing	Who must attend	What actually happens
Filing / scrutiny	Advocate	Registry checks the petition, annexures and court fee; defects are returned for correction.
First motion	Both parties, in person	Statements on oath; consent verified; mediation or counselling may be ordered; waiver application may be moved.
Waiver hearing	Advocate, parties if directed	Court decides whether the six-month wait serves any purpose.
Second motion	Both parties, in person	Consent reconfirmed; settlement terms verified; decree passed.
Certified copies	Either party	Applied for at the copying section; usually a few days.

CHAPTER 6

The cooling-off period, and how to have it waived

Six months of waiting, in a marriage that ended two years ago, serves nobody. The law now agrees — but only if you ask properly, and prove it.

The statutory position

Section 13B(2) says the second motion may be made "not earlier than six months" after the petition and "not later than eighteen months". Read literally, that is a compulsory wait. The Supreme Court has read it differently: the six-month period is directory, not mandatory, and a court may waive it.

The four factors from Amardeep Singh (2017)

In Amardeep Singh v. Harveen Kaur, (2017) 8 SCC 746, the Court held that a court satisfied that a case is made out may waive the period after considering whether:

1. the six months under section 13B(2), in addition to the one year of separation under section 13B(1), are already over before the first motion itself;
2. all efforts at mediation and conciliation have failed and there is no likelihood of success in any further effort;
3. the parties have genuinely settled their differences, including alimony, custody of a child, or any other pending issue;
4. the waiting period will only prolong their agony.

The Court also said the waiver application can be filed one week after the first motion, and that where these conditions are satisfied the waiver is in the court's discretion.

What changed in 2023 and 2026

In Amit Kumar v. Suman Beniwal, (2023) 17 SCC 648, the Supreme Court clarified that the four factors are illustrative and not exhaustive, and that if all four are fulfilled the court would "necessarily have to exercise its discretion" to waive. Then, on 2 February 2026, in Misha Somani v. Rituraj Somani, the Court set aside a High Court order that had refused a waiver by treating those four factors as a checklist every one of which had to be ticked — and granted the decree of divorce itself under Article 142, with the parties' settlement forming part of the order. Its reasoning was blunt: when the parties have taken a conscious decision to seek a decree by mutual consent, there is no point in keeping the marriage continuing.

That is the authority to put in front of a Family Court that refuses your application because one box looks unticked. It does not make waiver automatic. It makes your settlement the whole argument.

What a waiver application that works actually contains

1. A chronology of separation with dates and documents — not an assertion that you have been apart "for a long time".
2. The settlement deed, complete, with every term closed. An unfinished settlement reads as exactly what the Court said it must not be.
3. Evidence that mediation or counselling was attempted and failed — a mediation report, a counsellor's note, or a recorded refusal.
4. A statement that nothing is left running: no maintenance application, no custody petition, no complaint, or a clear term dealing with each.
5. A reason the wait serves no purpose. Sometimes it is simply elapsed time; sometimes there is a specific one — a job abroad, a visa, a remarriage, health.
6. The judgments, cited: Amardeep Singh, Amit Kumar, Misha Somani.

When it fails

It fails when the settlement is incomplete, when the separation is recent enough that the court thinks reconciliation is possible, when one party's consent looks shaky, or when the judge simply takes a strict view. In that case you wait. Six months is the floor, not the sentence — and the eighteen-month outer limit only matters if you do nothing. Diarise the date the second motion becomes available and file it that week.

CHAPTER 7

The documents that decide whether your file moves

Registries do not evaluate your reasons. They check whether the papers are in order. Most delays in the first two months are document defects.

Category	What to carry
Identity	Aadhaar, PAN, passport, voter ID, driving licence — for both parties. Names must match across documents.
Marriage	Marriage certificate, or the registration certificate, or — where the marriage was solemnised without registration — photographs of the ceremony, the invitation, and affidavits from people who attended.
Separation	Rent agreement or lease in one party's name, utility bills, employer records showing a different city, bank statements showing a different address, correspondence.
Photographs	Passport-size photographs of both parties, and where relevant photographs of the couple at the wedding.
Income	Last three years' income tax returns, Form 16, salary slips for six months, bank statements for twelve months, business financials if self-employed.
Children	Birth certificates, school records, medical records, and any existing custody order.
Property and assets	Sale deeds, allotment letters, loan sanction letters, vehicle registration, fixed deposit and mutual fund statements, demat holdings, insurance policies.
Litigation	Copies of every pending case — petition, FIR, charge sheet, orders — with case numbers.
Settlement	The signed memorandum of understanding, and separate affidavits from each party confirming free consent.

Five traps that cost weeks

1. **Name spelling.** Your Aadhaar says one spelling, your marriage certificate another, your passport a third. Fix the mismatch before filing, not after scrutiny.
2. **Address proof that predates the separation.** If you are claiming you have lived apart since March 2025, an electricity bill from 2023 proves nothing. Bring documents that fall after the date you are relying on.
3. **No marriage certificate.** It is not fatal, but it must be handled deliberately — with photographs, the invitation, and affidavits — rather than discovered at scrutiny.
4. **Income proof that contradicts your own case.** If you are claiming you cannot pay, your ITR had better not show a new car. If you are claiming you need maintenance, your affidavit of disclosure had better be complete and consistent.
5. **Originals versus copies.** Registries want certified copies and will want to see originals for verification. Keep one complete set of everything, scanned and named sensibly, in a folder you control.

CHAPTER 8

What it costs, and how long it really takes

The honest numbers, including the ones nobody quotes you at the first meeting.

These are indicative market ranges reported for 2026, not official fees. What you pay depends on your city, your advocate's seniority and how much of the settlement is already agreed. They are here so that you can recognise an outlier when you hear one.

Cost head	Indicative range	Notes
Court fee	A few hundred rupees	Fixed by State law for matrimonial petitions; nominal.
Notarisation, affidavits, copies	Rs. 500 - 2,000	Per party, per round of drafting.
Advocate's fee — simple mutual consent, joint advocate	Rs. 15,000 - 50,000	One advocate can represent both parties in an uncontested mutual consent matter, provided there is no conflict.
Advocate's fee — separate lawyers, complex settlement	Rs. 50,000 - 2,00,000	Property division, business valuation, NRI parties, or multiple jurisdictions.
Drafting the settlement deed	Rs. 5,000 - 25,000	Often the most valuable money spent in the whole matter.
Mediation	Usually nominal or free at court-annexed centres	Government-run mediation centres charge little or nothing.
Contested divorce, first court	Rs. 1,00,000 - 3,00,000 and up	Rises with every application, every adjournment and every appeal.
Free legal aid	Nil	For those who qualify — see Chapter 26.

Timelines, realistically

Scenario	With cooling-off waived	Without waiver
Everything settled, no children, no pending cases	1 to 3 months	7 to 9 months
Settled, with children and a visitation calendar	2 to 4 months	8 to 11 months
Settled, with property or a business to divide	3 to 6 months	9 to 14 months
One pending criminal complaint to be closed	Add 1 to 3 months	Add 1 to 3 months
NRI spouse, video appearance required	Add 1 to 2 months	Add 2 to 4 months

What actually blows the budget

Not the filing fee, and rarely the first hearing. It is adjournments — every date lost is a fee earned for nothing — and parallel proceedings, where the same facts are argued in three courts because nobody bundled them into one settlement. The third is appeals: a decree that is appealed stops being an ending and becomes a stage.

How to spend less without getting less

1. Do your own document collection. Paying a lawyer to chase your bank statements is the worst-value money in the file.
2. Arrive at the first meeting with a written term sheet. Two hours of drafting saved is two hours billed saved.

3. Use court-annexed mediation for the money conversation. It is cheap, it is confidential, and a mediated settlement is the strongest possible waiver argument.
4. Bundle everything into one settlement. Four proceedings closed by one document cost less than four proceedings.
5. Ask for a fixed fee for the mutual consent matter, with a written list of what it covers and what triggers an extra charge.

PART THREE

Contested divorce

This is the route where one of you is asking a court to decide. It is slower, more expensive and more exposing than mutual consent — and sometimes it is the only honest option. What follows is what the law actually accepts as a reason, and what the years in between actually look like.

CHAPTER 9

Grounds: what the law accepts as a reason

The law does not ask whether your marriage is unhappy. It asks whether one of a short list of things happened, and whether you can prove it.

The grounds under the Hindu Marriage Act

Section 13(1) allows either spouse to petition on any of these:

- voluntary sexual intercourse with any person other than the spouse, after the marriage;
- cruelty — physical or mental;
- desertion for a continuous period of at least two years immediately before the petition;
- ceasing to be a Hindu by conversion to another religion;
- incurable unsoundness of mind, or mental disorder of such a kind and extent that the petitioner cannot reasonably be expected to live with the respondent;
- venereal disease in a communicable form;
- renouncing the world by entering a religious order;
- not being heard of as alive for seven years or more by those who would naturally have heard of them.

Section 13(2) adds two grounds available only to a wife: that the husband has since the marriage been guilty of rape, sodomy or bestiality; and that a maintenance order was passed against the husband while she lived apart and cohabitation has not resumed for a year or more. Leprosy was removed as a ground by the Personal Laws (Amendment) Act, 2019.

The other statutes

Statute	Grounds in short
Special Marriage Act, section 27	Adultery; desertion for two years; imprisonment for seven years or more; cruelty; unsound mind or mental disorder; venereal disease; not heard of alive for seven years. Plus the wife-only grounds, and divorce after a decree of judicial separation or restitution of conjugal rights has not been complied with for a year.
Divorce Act, 1869, section 10	Adultery; ceasing to be Christian by conversion; incurable unsoundness of mind for two years; venereal disease for two years; not heard of alive for seven years; wilful refusal to consummate; non-compliance with a restitution decree for two years; desertion for two years; cruelty causing a reasonable apprehension that living together would be harmful or injurious.

The one-year bar

Section 14 of the Hindu Marriage Act bars any divorce petition within one year of the marriage, unless the court grants leave on the ground of exceptional hardship to the petitioner or exceptional depravity on the part of the respondent. The Special Marriage Act has a similar one-year bar running from the date the marriage was entered in the Marriage Certificate Book. People married recently sometimes assume they can file immediately because the marriage has failed; usually they cannot.

What courts actually treat as cruelty

Cruelty is the ground most often pleaded and least often understood. It is not "he was difficult" or "her family interfered". Courts have accepted, over decades, sustained physical violence; a course of conduct calculated to cause mental pain; false and malicious criminal allegations made against a spouse; persistent dowry demands and harassment; serious addiction combined with abuse; and conduct that makes continued cohabitation genuinely unsafe or unbearable. Courts have also held that ordinary marital friction, incompatibility, or the wear of daily disagreement is not cruelty. If your facts are "we cannot live together", that is a mutual consent case, not a cruelty case — and pleading cruelty you cannot prove is how contested matters become five-year matters.

> **The distinction that decides your strategy**
>
> The ground you plead is not the story you tell. It is the legal label for a set of facts you can prove with documents and witnesses. Before you file, write the label at the top of a page, and underneath it list the evidence you have for each element. If the list is thin, the honest choice is either to settle or to wait until you have it — not to file and hope the court fills the gap.

CHAPTER 10

Evidence, adjournments and the long game

A contested divorce is decided on documents, not on who deserves it more. And it is endured, not won.

What decides these cases

Judges decide on the record: the pleadings, the documents, the testimony of the parties and their witnesses. Not on how articulate you are, not on how sympathetic the facts sound in a first hearing, and not on what everyone in the family knows to be true. This is why the spouse who arrives with a folder wins more often than the spouse who arrives with a grievance.

The evidence that actually moves a file

What you want to prove	What proves it
Income and capacity to pay	Income tax returns, Form 16, salary slips, bank statements, credit card statements, loan applications, property purchases, business financials.
Concealment of income	A lifestyle that contradicts the declared income: travel, vehicles, rent paid, school fees, investments. Courts can draw an adverse inference where a party withholds material.
Desertion	Proof of the date of separation, separate residence, and that you did not consent to it.
Cruelty	Medical records, police complaints, messages, photographs, witnesses who saw or heard it.
Adultery	Direct or circumstantial evidence — travel records, messages, photographs. It is the hardest ground to prove and rarely worth the cost on its own.
Assets	Sale deeds, allotment letters, shareholding, mutual fund and demat statements, insurance policies, gold inventories.

A note on screenshots

Electronic records — WhatsApp messages, emails, call records, photographs — are admissible, but since the Bharatiya Sakshya Adhiniyam, 2023 came into force, the certificate requirement that used to sit in section 65B of the old Evidence Act sits in section 63. In practice: keep the original device, do not delete the thread, export with metadata intact, and ask your advocate for the certificate format before the hearing, not on the morning of it. Screenshots forwarded through four phones prove very little.

The long game

A contested divorce in a busy district runs through dozens of dates. Adjournments are routine — sought by both sides, granted for reasons that have nothing to do with your case. The practical consequences: your documents go stale, your witnesses move away, your costs accumulate, and your child grows up inside the proceedings.

What you can actually control

1. Appear on every date. Non-appearance is the fastest way to lose an interim order or have a petition dismissed for default.
2. File everything early. Applications filed at the last minute are adjourned.
3. Ask your advocate for a written status note after each hearing: what was filed, what was ordered, what is next.

4 Track your case yourself on the e-courts portal by CNR number. It takes two minutes and it makes you a better client.

5 Keep a single chronology document, updated monthly. Every new advocate, mediator or judge you meet will ask for it.

The exit nobody mentions

A contested case can become a mutual consent case at any stage. If, in year two, the other side offers terms you can live with, take them to a mediator and convert the petition. Courts encourage this, because it clears their docket and ends a family's war. The conversion is not a defeat; it is the same decree, years earlier.

> **Appeals, and why the ending can un-end**
>
> A decree can be appealed to the court to which appeals ordinarily lie from the deciding court, within ninety days. Until that window closes, or an appeal is decided, your "final" order is not final. This is the practical reason people wait before remarrying, and the practical reason a settlement should include no-appeal undertakings from both sides where possible.

PART FOUR

Money

Four different statutes let a spouse claim money, and they overlap. Knowing which door to knock on — and which doors to close — is most of the financial strategy in a divorce.

CHAPTER 11

Four doors to maintenance

Maintenance is not a punishment and not a prize. It is the law's attempt to stop one person falling into destitution because a marriage ended.

Door	Who can claim	When	What it covers
Section 24, Hindu Marriage Act (and section 36 of the Special Marriage Act and of the Divorce Act)	Either spouse — wife or husband	During the proceedings	Monthly interim maintenance and the expenses of the litigation. The statute asks courts to dispose of these applications within sixty days of notice, as far as possible.
Section 25, Hindu Marriage Act (and sections 37 of the SMA and the Divorce Act)	Either spouse	At the time of the decree, or at any time afterwards	Permanent alimony — a gross sum or a monthly or periodical payment — and it can be secured by a charge on the other spouse's property. It can be varied later if circumstances change.
Section 144, Bharatiya Nagarik Suraksha Sanhita	Wife, children, and parents — of any religion	Any time; a Magistrate's order	A monthly allowance at such rate as the Magistrate thinks fit — there is no statutory ceiling. Interim maintenance is separately provided for.
Section 20, Protection of Women from Domestic Violence Act, 2005	Any aggrieved woman, including a woman in a relationship in the nature of marriage	Any time, and also within other pending proceedings	Monetary relief — maintenance, medical expenses, loss of earnings — consistent with the standard of living she was accustomed to in the shared household.
Sections 18 and 20, Hindu Adoptions and Maintenance Act, 1956	A Hindu wife, and dependent children	Any time	Maintenance as a civil right, including where she is justified in living separately.

The three things almost everyone gets wrong

One. Section 144 applies to every religion and to a divorced wife. The Explanation to section 144(1) says that for this chapter, "wife" includes a woman who has been divorced by, or has obtained a divorce from, her husband and has not remarried. A divorced woman therefore does not lose her claim to a monthly allowance by the act of divorce — only by remarriage. This is why a lump-sum settlement must expressly record that it is in full and final settlement, or the claim can return.

Two. Section 144(4) contains a trap for anyone separating by agreement. No wife is entitled to an allowance under that section if she is living in adultery, or if without sufficient reason she refuses to live with her husband, or if they are living separately by mutual consent. If you are separating by mutual consent, the alimony must be written into your settlement deed. It will not be read into it.

Three. Overlapping claims get set off, not multiplied. In Rajnesh v. Neha (2020) 4 SCC 153 the Supreme Court dealt with exactly this problem: the same wife claiming under several statutes and the husband facing successive orders. The Court directed that in a later proceeding the applicant must disclose the earlier one, and the court must adjust or set off the amount already awarded. Filing in four forums does not produce four awards.

How quantum is actually decided

There is no formula. Anyone who tells you maintenance is "25 per cent of salary" is guessing, and courts have said repeatedly that there is no straitjacket formula. What the court weighs, following Rajnesh, includes: the status of the parties; the reasonable needs of the wife and dependent children; whether she is educated or professionally qualified; whether she has independent income, and whether that income is enough to maintain the standard of living she had in the matrimonial home; whether she gave up employment to raise a family; the reasonable cost of litigation; the husband's actual income, assets and liabilities, and his obligations to other dependants; and the duration of the marriage.

> **The sentence worth remembering from Rajnesh v. Neha**
>
> *Maintenance "should neither be so extravagant which becomes oppressive and unbearable for the respondent, nor should it be so meagre that it drives the wife to penury".*
>
> That is the whole test, and it cuts both ways. It is not a licence to punish, and not a licence to leave someone with nothing.

CHAPTER 12

The affidavit of disclosure, and how quantum is argued

Since 2020 there has been a mandatory document in every maintenance proceeding in India. If you file without it, you are arguing with one hand tied.

What Rajnesh v. Neha changed

The Supreme Court framed guidelines to fix a system where interim maintenance applications sat for years on scanty pleadings. The directions that still govern practice in 2026 are, in substance: that the party claiming maintenance must file a concise application along with an **Affidavit of Disclosure of Assets and Liabilities**; that the other party must file the same affidavit in reply; that on that material the court should be able to assess an approximate figure at the interim stage; that interim maintenance applications should be disposed of, as far as possible, within sixty days of the affidavits being filed; that maintenance is ordinarily payable from the date of the application, not the date of the order; that overlapping awards must be adjusted; and that a professional marriage counsellor should be available in every Family Court.

Both sides file it. Not just the claimant

This is the part people miss. The affidavit is not a form the wife fills in against the husband. Both parties file one — income, assets, liabilities, expenses. A husband who files a blank or evasive affidavit while living in a flat he does not own, driving a car registered to his mother, is not being clever; he is creating a record the court can draw an adverse inference from.

What goes in the affidavit

Section	What to declare
Personal	Age, address, occupation, dependants, and who else lives in the household.
Income	Salary, business income, professional fees, rent, interest, dividends, capital gains, agricultural income, any perquisite or benefit in kind. Attach returns, Form 16 and six months of statements.
Assets	Immovable property with values, vehicles, bank balances, fixed deposits, mutual funds, shares, demat holdings, insurance policies with surrender values, jewellery, crypto holdings.
Liabilities	Home loan, car loan, personal loans, credit card dues, informal borrowings — with the outstanding and the EMI.
Expenses	A monthly budget for the household: rent, utilities, groceries, transport, school fees, medical, insurance, help, and any support to parents.
Litigation	Every pending proceeding between the parties, with case numbers and any order already passed.

How to present your numbers so a judge can use them

Judges are not hostile to need; they are hostile to vagueness. "I need at least Rs. 60,000 a month" invites the question "why". A one-page monthly budget that adds up to Rs. 60,000, with the school fee receipt and the rent agreement attached, answers it before it is asked. Do the same in reverse if you are the payer: show the net take-home, not the gross, and show the EMIs, not just the salary.

A worked illustration (figures are illustrative, not a formula)

A wife with one child, married eight years, who stopped working in year three. Her stated monthly need: rent Rs. 22,000; school fee Rs. 9,000; groceries and household Rs. 15,000; transport Rs. 6,000; medical and insurance Rs. 4,000; clothing and sundries Rs. 4,000 — Rs. 60,000. Her husband declares a net take-home of Rs. 1,45,000 and a home loan EMI of Rs. 38,000 on the flat she has left.

The court does not do arithmetic on the two numbers alone. It asks whether the Rs. 60,000 is consistent with the standard of living in the marriage, whether the wife could realistically earn again and how quickly, whether the husband's declared expenses are genuine, and what is left for him to live on. A common outcome in this shape of case is an interim figure in the range of a third to a half of the claimed need, reviewed once the evidence is in. Present both columns — need and capacity — because a court can only allocate what it can see.

CHAPTER 13

When the money does not arrive: enforcement

An order for maintenance is worth exactly what your ability to enforce it is worth. The law does give you teeth — but they have to be used.

Under section 144 of the BNSS

If a person ordered to pay fails without sufficient cause to comply, the Magistrate may, for every breach, issue a warrant for levying the amount due in the manner provided for levying fines, and may sentence the person to imprisonment for up to one month for each month's allowance remaining unpaid, or until payment if sooner made. Two provisos matter in practice.

First, no warrant may be issued for recovery of an amount due unless the application to levy it is made within one year from the date it became due. That sounds fatal if you have let arrears pile up. It is not: in Poongodi v. Thangavel (2013) the Supreme Court held that this proviso does not extinguish the right to arrears, and in October 2026 the Allahabad High Court reaffirmed that it only bars coercive recovery by warrant and imprisonment for a time-barred period, leaving the substantive claim alive and recoverable by ordinary civil remedy.

Second, you do not have to file a fresh application every month. In Shantha v. B. G. Shivananjappa (2005) 4 SCC 468 the Supreme Court held that maintenance is a continuing liability and that successive applications cannot be insisted upon. Once an enforcement application is filed in time, later defaults are pursued in the same proceeding.

The tools courts are now using

1. Direct deposit into the claimant's verified bank account, rather than payment into court — a direction the Supreme Court has encouraged and which the Allahabad High Court in 2026 directed all Family Courts in its State to follow.
2. Salary deduction at source where the payer is salaried, with the employer directed to remit the amount — the route the Supreme Court approved in Dimple.
3. Attachment and sale of movable property, or recovery as arrears of land revenue.
4. Simple imprisonment up to one month for each month's default, after a warrant has been issued.

Orders under the Hindu Marriage Act and the Hindu Adoptions and Maintenance Act are different in kind: they are executed as civil decrees under the Code of Civil Procedure, where the maximum civil imprisonment for default is three months. Both routes exist; which one is faster depends on your court.

> **Keep a payment ledger from day one**
>
> A single spreadsheet: date due, amount due, date received, amount received, mode, reference. If you are the payer, keep the same ledger with proof of every transfer. In an enforcement hearing the person with the ledger is believed and the person with the memory is not. Never pay in cash without a signed receipt, and never let a payment be characterised as a gift.

CHAPTER 14

Stridhan, property and joint loans

Three separate questions people treat as one: what is hers absolutely, what is shared, and what is jointly owed.

Stridhan is not a bargaining chip

Stridhan is property a woman receives before, during or after the marriage — from her parents, her relatives, her husband's family, at the wedding or later. The Supreme Court held in Pratibha Rani v. Suraj Kumar (1985) that a husband and his relatives who retain stridhan are holding property that belongs to her, and that she is entitled to its return. It is not joint property, it is not subject to division, and it does not become the family's because it was kept in the matrimonial home.

In practice, the problem is proof. Which is why the settlement needs a list, not a promise: item, description, approximate weight where it is gold, and photographs. Photographs of the wedding jewellery, taken at the wedding, are the single most useful evidence a woman can have, and almost nobody keeps them in a folder she controls.

The matrimonial home: residence is not ownership

These get conflated and the confusion costs people settlements. A married woman does not acquire an automatic ownership share in her husband's or her in-laws' house merely by marrying into it. What she does have is a right of residence in the shared household under section 17 of the Protection of Women from Domestic Violence Act, enforceable through residence orders under section 19. The Supreme Court examined the meaning of "shared household" in Satish Chander Ahuja v. Sneha Ahuja (2021) and clarified that the right is not limited in the way many trial courts had assumed. Residence and ownership are separate rights with separate remedies — do not trade one for the other without knowing which you are giving up.

Ancestral property is different

Since the Hindu Succession (Amendment) Act, 2005, a daughter is a coparcener in ancestral Hindu property by birth, with the same rights as a son, including the right to ask for partition. If a divorce settlement involves family property, that is a separate entitlement from anything the divorce court will decide, and it does not disappear because the marriage ended.

The joint home loan is where people get hurt years later

Problem	Why it bites	What to do
Your name stays on the loan after you leave	The bank is not a party to your divorce. You remain jointly and severally liable, and a default by the other spouse lands on your credit report.	Settlement term: who pays, by when, and an indemnity from that spouse. Then actually apply to the bank for a release or a transfer of the loan.
The bank refuses to release you	Banks release a co-borrower only on proof of repayment capacity or on transfer of the loan to the other spouse's sole name.	Ask for the release in writing before signing the settlement, and if refused, provide for a sale or a refinance in the deed.
Joint credit cards	The add-on cardholder is not liable, but the primary cardholder is liable for everything, including what the other person spent.	Close the card, get a no-dues certificate, and keep it.
Joint bank accounts and lockers	Either holder can operate or freeze; a locker dispute can outlast the marriage.	Close accounts; for a locker, record the inventory and the surrender in the deed.
Vehicle in joint names	RC transfer needs both signatures and a NOC.	Decide who keeps the vehicle, and get the transfer and hypothecation removal done before the second motion.

CHAPTER 15

Tax on alimony and on transfers

There is no section in the income tax law that deals with alimony. The rules come from case law, and they reward people who write their settlement carefully.

The position, in short

Payment	Tax treatment	Authority
Monthly or periodical maintenance received after divorce	Taxable in the recipient's hands as income from other sources. Taxed on receipt, not on accrual — so arrears cleared in one year are taxed in that year.	Princess Maheshwari Devi of Pratapgarh v. CIT (1984) 147 ITR 258 (Bombay High Court).
Lump-sum alimony received under a decree or settlement	Treated as a capital receipt — not taxable. The right to maintenance is treated as a capital asset that is extinguished or reduced by the payment.	Same judgment; ACIT v. Meenakshi Khanna (ITAT Delhi), where a consolidated settlement of past and future claims was held not taxable.
The payer	No deduction. Alimony is a personal expense; the payer is taxed on the full income even where an employer deducts and remits part of the salary under a court order.	Settled position; no provision allows a deduction.
Assets transferred before the divorce	Generally treated as a gift between relatives, and outside the scope of the gift-taxing provision.	Section 56(2)(x) of the Income-tax Act, 1961, read with the definition of "relative".
Assets transferred after the divorce	The ex-spouse is no longer a "relative" for this purpose. A transfer without consideration can be exposed to tax above the threshold.	Same provision — the risk is real and is usually discovered late.

What this means for how you draft

1. If the total is fixed and the payer can fund it, a lump sum is usually the more tax-efficient outcome for the recipient, and the case law supports the capital receipt characterisation.
2. Describe the payment in the deed as a final, consolidated discharge of all matrimonial claims. That sentence is the factual foundation for the tax treatment, and it also helps the cooling-off waiver.
3. If you must take periodical maintenance, expect to pay tax on it and plan the cash flow accordingly — a Rs. 40,000 a month order is not Rs. 40,000 of spending money.
4. Handle asset transfers deliberately, with a chartered accountant, before the decree rather than after.
5. Get the deed reviewed by a CA as well as an advocate. Family lawyers draft excellent settlements with expensive tax consequences.

Two honest caveats

First, this is the position as it stands on the case law, not a statutory code. The income-tax law was recast with effect from 1 April 2026, and while no specific alimony provision has been introduced, the treatment still rests on judgments rather than on a section you can point to. Confirm your own numbers with a chartered accountant before you sign.

Second, capital gains and stamp duty are separate questions. Transferring a house as part of a settlement can attract both, and the exemptions that apply to transfers between spouses do not automatically apply once the marriage has been dissolved. Ask before you agree to take the flat instead of the money.

PART FIVE

Children

Every custody dispute in India is decided on one test: what serves the welfare of the child. Not the parents' conduct, not who can afford more, not who filed first. Understanding that single sentence changes how you prepare, and often changes the outcome.

CHAPTER 16

Custody: the only test is the child's welfare

Courts are not deciding who is the better parent. They are deciding what arrangement gives this child the best chance.

The legal framework

Section 26 of the Hindu Marriage Act allows the court, in any proceeding under the Act, to pass interim or final orders about the custody, maintenance and education of minor children, and to revoke, suspend or vary them later. Section 7 of the Guardians and Wards Act, 1890 gives a court the power to appoint a guardian, and section 17 lists the matters to be considered — with the welfare of the minor as the guiding principle. The Special Marriage Act and the Divorce Act contain equivalent powers. In every one of them, the welfare of the child is paramount, and the parents' rights are subordinate to it.

The words you will hear

Term	What it means in practice
Physical custody	Where the child actually lives, day to day.
Legal custody	Who decides on school, medical treatment, travel, religion. Can be joint even where physical custody is with one parent.
Visitation or access	The schedule for the other parent — weekends, holidays, festivals, calls. This is the term most often left vague and most often litigated.
Joint or shared parenting	A structured arrangement where the child spends substantial time with both parents. Courts are increasingly open to it where the parents live close and cooperate.
Interim custody	Who has the child while the case is pending. It often sets the practical starting point for the final order.

There is no presumption in favour of the mother

It is commonly believed that custody automatically goes to the mother. The statutes do not say that, and neither do the courts. What courts actually weigh is who has been the primary caregiver, who the child is attached to, the child's age and schooling, the stability of each home, and — for older children — the child's own preference, which is given weight according to the child's maturity. With very young children courts often, though not automatically, favour the mother. "Often" is not "always", and it is not a strategy.

The judgment worth reading before you file

In Yashita Sahu v. State of Rajasthan (2020) the Supreme Court dealt with a custody and visitation dispute and made a point that is quoted in family courts constantly: a child has a right to the love and affection of both parents, and visitation is not a concession granted to the other parent — it is the child's right. The Court also cautioned against using the child as a means of pressuring the other spouse. If your custody strategy involves withholding access to punish your ex-partner, you are building a record that will be used against you.

Practical questions that come up fast

- A minor's passport requires the consent of both parents, or a court order. If the other parent will not sign, apply for an order — do not plan the trip first.
- School admission and transfer usually need the guardian's signature and the previous school's records. A court order naming the guardian makes this simple.
- Relocation to another city needs to be in the parenting plan, or it becomes an application.

- International relocation is a separate, harder question. India is not a party to the Hague Convention on child abduction, so the remedies available are domestic — which makes prevention far more valuable than litigation afterwards.
- Custody orders can be modified if circumstances materially change. They are not permanent, and saying so in the settlement reduces the incentive to re-litigate.

> **What a court is really being asked**
> Not "who do you love more" but "which arrangement can this child live inside without being damaged". Two homes that do not fight, a school that does not change, and a calendar both parents keep. If your proposal reads like that on paper, it will read well in court.

CHAPTER 17

The parenting plan

A calendar beats a clause. If the schedule is written down and both parents keep it, most custody litigation never happens.

A parenting plan is the children's section of your settlement, written at the level of a diary rather than the level of a principle. What follows is the structure to fill in — the worksheet at the back of this book is the same thing, formatted for printing.

1. The ordinary week

Which parent has the child on which days, who does school drop-off and pick-up, who handles homework, who is the emergency contact at school. State the handover time and place — a specific address, a specific hour.

2. Weekends and holidays

Alternate weekends, with the handover hour named. Then the long holidays: summer break split how, winter break split how, and which festivals belong to which parent in which year — Diwali this year with one, next year with the other. Ambiguity here is the single most common source of a fresh application.

3. Birthdays and family occasions

The child's birthday, both parents' birthdays, grandparents' milestones, weddings. Decide who hosts, who attends, and whether both parents attend.

4. Communication

When the other parent may call or video-call, and for how long. A fixed evening window is better than "anytime", because "anytime" becomes a nightly argument.

5. Decisions

Who decides what: schooling, medical treatment, tuition, extracurriculars, travel outside the city, religious ceremonies. For major decisions, either joint consent or a named tie-breaker.

6. Money

Monthly child support, who pays school fees directly to the school, medical insurance, and how an unplanned expense is shared. Put the annual increase in writing.

7. Conduct between the parents

No speaking badly about the other parent in front of the child. No using the child to carry messages. No questioning the child about the other parent's household. These read as soft terms; in practice they are the ones that keep a child intact.

8. When you disagree

A ladder: a conversation, then mediation, then the court. Naming the ladder means a disagreement about a football match does not become an application.

> **The four-line test for any parenting plan**
>
> 1. Could a stranger run the child's month from this document alone?
> 2. Is every handover a date, a time and a place?
> 3. Does each parent know exactly what they pay and to whom?
> 4. Is there a named way to resolve a disagreement that is not "go back to court"?

CHAPTER 18

Talking to your children

They will remember the conversation longer than they remember the divorce. What follows is not therapy advice — it is the practical script that child counsellors and family courts converge on.

The five things to say

1. "This is between us, and it is not your fault." Say it more than once. Children assume responsibility by default.
2. "We both love you, and that does not change." Not "we still love you" — that sounds conditional. "Does not change" is a fact they can hold.
3. "Here is what will stay the same." Your school, your room, your grandparents, your friends, football on Saturdays. Name five things.
4. "Here is what will change, and when." Children cope badly with the unknown and surprisingly well with a plan, even a plan they do not like.
5. "You can ask me anything, and I will tell you the truth at your level." Then do it.

The five things never to say

1. "Your father does not want to see you." Whatever the truth of the access dispute, this sentence damages the child, not the other parent.
2. "This is because of your grandmother." Blame assigns a side to a child who needs both.
3. "Don't tell your mother I said that." Secrets teach a child that love requires concealment.
4. "I stayed only for you." It hands a child a debt no child can pay.
5. Anything about money, court dates, or what the lawyer said. Children are not negotiators and should not be briefed like one.

By age

Age	What they understand	What helps
Under 5	That a parent is gone and routines changed. No concept of divorce.	Short sentences, repeated. Keep the routine, the bedtime, the toy, the carer.
6 to 10	That something is wrong and they may have caused it. Magical thinking is strong.	Explicitly remove blame. Concrete calendar they can see on a wall. Tell the school so the teacher can watch for changes.
11 to 15	The conflict, the money, the legal fight — often more than parents realise. Anger is common.	Honesty without detail. Let them be angry at both of you. Do not recruit them as witnesses or messengers.
16 plus	The whole picture, and their own opinions about it.	Treat them as a person with a view. Ask where they want to live, and listen to the answer even if it is not the one you wanted.

Tell the school, and tell them once

A short, factual note to the class teacher and the school counsellor: the parents are separating, both remain involved, please inform both of any concern. It prevents the child from having to explain it themselves, and it creates an adult in the building who is watching. Do not use the school as a channel for messages to your ex-spouse.

If you need help

Tele-MANAS, the Government of India's national tele-mental health programme, can be reached on 14416 and offers free counselling in multiple Indian languages. For a child who is struggling, the school counsellor or a child psychologist is the right first step — not a court application.

PART SIX

Safety and criminal complaints

Two statutes sit alongside every divorce in India and are often confused with it: the Protection of Women from Domestic Violence Act, which is about protection, and section 85 of the Bharatiya Nyaya Sanhita, which is about punishment for cruelty. Neither one decides your divorce. Both change how it unfolds.

CHAPTER 19

The Domestic Violence Act, decoded

This is a civil protection statute with criminal consequences for breach. It is not a divorce law, and it is not a substitute for one.

Who it protects

An "aggrieved person" under section 2(a) is any woman who is, or has been, in a domestic relationship with the respondent, and who alleges having been subjected to domestic violence. A domestic relationship under section 2(f) includes relationships by consanguinity, marriage, or through a relationship in the nature of marriage — which is why the Act reaches live-in relationships — and includes adoption, and family members living together in a shared household. The respondent is an adult male member of that household. The Act protects women; it is not gender-neutral.

What counts as domestic violence

Not only physical violence. The Act covers physical, sexual, verbal and emotional abuse, and economic abuse — including deprivation of financial resources and disposal of household assets. Verbal and emotional abuse includes insult, ridicule, humiliation and repeated threats. This breadth is why the Act is used in so many matrimonial disputes, and why it is sometimes used tactically; both are true at once.

The reliefs available

Section	Relief
Section 12	The application itself, made to a Magistrate. A Protection Officer, a service provider, or any person acting on her behalf may help file it. Court fee is nil.
Section 17	The right to reside in the shared household — a right, not a favour, and one that cannot be defeated by the husband having no ownership interest in it.
Section 18	Protection orders: restraining violence, contact, entry to the workplace or school, and alienation of assets.
Section 19	Residence orders: restraining the respondent from dispossessing her, or directing him to remove himself from the shared household, or providing alternate accommodation.
Section 20	Monetary relief: maintenance, medical expenses, loss of earnings, and compensation for the standard of living she was accustomed to.
Section 21	Interim custody of children.
Section 22	Compensation for injuries, including mental pain and distress.
Section 23	Interim and ex parte orders, where the Magistrate is satisfied that the application discloses a likelihood of immediate danger.
Section 26	The same reliefs can be sought in any pending proceeding before a civil or criminal court — which is how DV relief often arrives inside a divorce petition.
Section 31	Breach of a protection or residence order is an offence — imprisonment up to one year, or a fine up to twenty thousand rupees, or both.

How it actually runs

A woman files under section 12, usually through the District Legal Services Authority or a Protection Officer, and the Magistrate can grant interim orders at the first hearing. The proceedings are meant to be summary and quick; in busy districts they are neither, but the interim protection usually arrives early, which is the point. The Supreme Court examined the reach of the shared-household right in Satish Chander Ahuja v. Sneha Ahuja (2021) 1 SCC 414 and clarified that a woman's right of residence is not confined in the narrow way many lower courts had read it.

What it is not

It does not dissolve a marriage. It does not decide permanent alimony. It does not determine custody for all time. It is a protection and support mechanism, and a residence order is not a property right. Reading it as a divorce strategy produces a long, bitter file with an order that expires in the same year the marriage does.

> **If you are in danger, in this order**
>
> 1. Call 112, or go to the nearest police station. A protection order is worth nothing if you are not safe tonight.
> 2. Go to the One Stop Centre in your district — the Sakhi centres run under the Ministry of Women and Child Development provide shelter, medical aid, police facilitation and legal aid in one place.
> 3. Contact the Protection Officer for your district, whose number is listed with the District Legal Services Authority at your district court.
> 4. Take the documents: Aadhaar, marriage certificate, bank details, and photographs of injuries if there are any. Keep a copy with someone you trust.
> 5. Keep a safety plan — where you go, who you call, what you carry — written down and shared with one person.

CHAPTER 20

Cruelty under section 85 BNS (the old 498A)

The section number changed in 2023. The way it is used, and the way it ends, did not.

What the section says

Section 85 of the Bharatiya Nyaya Sanhita, 2023 replaced section 498A of the Indian Penal Code. It provides that whoever, being the husband or the relative of the husband of a woman, subjects her to cruelty shall be punished with imprisonment for a term which may extend to three years, and shall also be liable to fine. Section 86 defines cruelty for this purpose in two limbs: any wilful conduct of such a nature as is likely to drive the woman to commit suicide or to cause grave injury or danger to life, limb or health, whether mental or physical; and harassment with a view to coercing her or any person related to her to meet any unlawful demand for any property or valuable security.

What it means for a divorce

Almost nothing, legally, and a great deal, practically. The criminal case does not decide whether you get a divorce, how much maintenance is payable, or who gets custody. It runs on a separate track with its own court and its own timetable. What it does do is change the temperature of every negotiation: a husband facing a criminal case has a strong reason to settle, and a wife holding one has leverage she may not otherwise have. Both of those facts are real, and neither of them is a substitute for a written settlement.

How these cases actually end

Route	How it works	Practical note
Quashing by the High Court	The High Court's inherent power under section 528 of the BNSS (the old section 482 CrPC) to quash a proceeding, most often where the parties have settled.	The standard route after a comprehensive settlement. The settlement is usually placed before the High Court and forms part of the quashing order.
Compromise recorded in the trial court	Where the law permits, a settlement recorded before the court trying the offence.	Depends on the offence and the State's practice; ask your advocate specifically.
Trial	A full trial on the evidence.	Slow — often years — and expensive for both sides. Rarely anyone's preferred outcome.

On arrest

In Arnesh Kumar v. State of Bihar (2014) the Supreme Court laid down guidelines for arrest in offences punishable with imprisonment up to seven years, requiring police officers to satisfy themselves that arrest is necessary and to record reasons, and directing magistrates not to authorise detention mechanically. Those guidelines remain the framework. They do not mean an arrest will not happen; they mean an arrest without recorded reasons is challengeable.

> **The honest advice to both sides**
>
> If you are the complainant: the criminal case is not a substitute for a settlement, and it will not produce money. Use it as part of a package — settlement first, withdrawal or quashing second — and take legal advice before you agree to either.
>
> If you are the accused: do not treat the complaint as something that will blow over, and do not try to make it disappear by pressure. Get counsel, get the settlement documented, and let the closure happen in the correct order.

CHAPTER 21

If you are the one facing the complaint

The first four weeks set the shape of everything that follows. What you do now should be boring, documented and lawful.

1. **Get counsel immediately, and separately from your divorce lawyer if the same person cannot do both.** A criminal matter and a matrimonial matter need different skills and, sometimes, different people.
2. **Do not abscond.** Non-appearance converts a complaint into a warrant, and a warrant converts a negotiation into a manhunt.
3. **Apply for anticipatory bail if there is a real risk of arrest.** Do it before the arrest, not after.
4. **Do not contact her directly, or through relatives, to "sort it out".** Every such message becomes evidence. Route everything through counsel.
5. **Preserve everything.** Messages, call logs, bank records, medical records, photographs, the marriage certificate, and every document about money. Do not delete a thread because it is unpleasant.
6. **Keep paying what you are ordered to pay.** Non-payment during a criminal case hands the other side a second, easier victory.
7. **Understand the two-track reality.** The criminal case will not decide your divorce and your divorce will not decide the criminal case. A single comprehensive settlement is what closes both.
8. **Do not sign a settlement that requires you to pay before the case is closed, unless the closing instrument is drafted and ready.** Sequence protects you as much as it protects her.

What not to expect

That the truth will surface quickly. Criminal courts in India are slow, and a matrimonial complaint can sit for years regardless of its merits. What you control is the record you build, the orders you comply with, and whether a settlement is on the table. Plan for eighteen months and be pleasantly surprised.

PART SEVEN

After the decree

The decree is the legal ending. It is not the administrative one. The month after the decree is where nominations, loans, insurance and identity documents either get fixed or quietly go wrong for a decade.

CHAPTER 22

The 30-day administrative reset

One page, thirty days, everything that still carries the old life in it.

What to change	Where	Why it matters
Joint bank accounts	Branch, with the decree and both signatures — or an application if the other party will not cooperate	An account either of you can operate is an account either of you can empty.
Standing instructions, SIPs, ECS and auto-debits	Bank and the fund house or lender	A mandate linked to a joint account fails silently and damages your credit.
Loan accounts	Lender's branch or app	Get the release, the transfer or the closure in writing. Ask for a no-dues certificate.
Credit cards	Card issuer	Close joint and add-on cards; obtain a no-dues letter and keep it for seven years.
Nominations — EPF, PPF, NPS, insurance, demat	Respective portal	A nomination in favour of an ex-spouse is still a nomination until you change it.
Health insurance	Insurer	Remove the ex-spouse as a dependent, and confirm your own cover continues.
Vehicle registration and hypothecation	RTO, through Parivahan	RC transfer needs both signatures and an NOC; hypothecation removal needs the lender's clearance.
Rent agreement and utilities	Landlord, electricity, gas, water, internet	A utility in a name that has moved out becomes a dispute at the worst time.
School records and emergency contacts	School office	Update the guardian details and the list of people allowed to collect the child.
Will and succession documents	Your advocate or the registrar	A will naming an ex-spouse as beneficiary does not update itself.
Digital accounts and passwords	Email, cloud, banking apps, social accounts	Shared passwords are the most common way an ex-spouse retains access to everything.
Aadhaar, PAN, passport, voter ID, driving licence	See the next chapter	Names and spouse details follow you into every KYC check for years.

The two documents to obtain before you leave the court

Certified copies of the decree — at least four — and a copy of the settlement deed with the court's seal if it was annexed. Everything in the table above will ask for one of them, and getting a fresh certified copy in a hurry is slower than it sounds.

CHAPTER 23

Name, passport, Aadhaar, PAN

Four documents, four different processes, and one shared requirement: the decree.

Passport

The Passport Seva document requirements are explicit about divorce. For deletion of a spouse's name from the passport, the required document is the divorce order or decree. For a change of spouse's name, you need the divorce decree (or the first spouse's death certificate) and the re-marriage certificate or a joint photo declaration. For a change of surname by a woman applicant following marriage or divorce, the requirement is the marriage certificate or joint photo declaration, and the divorce order or decree where the name change is based on the divorce. Where the change is a full change of name and not one flowing from marriage or divorce, the standard name-change procedure applies — newspaper publication or Gazette notification, plus public documents in the new name. This is a re-issue application, not a fresh passport, and it is filed online.

Aadhaar

Name, address, date of birth, gender and mobile number can all be updated at an Aadhaar Seva Kendra or through the online update portal, with supporting documents. For a name change following divorce, carry the decree along with the standard identity proof. Update Aadhaar first if your name is changing, because almost every other KYC in the country reads from it.

PAN

A name change requires a correction application — online through the Income Tax Department's PAN services portal or through an authorised agency — supported by the document evidencing the change: the marriage certificate or the divorce decree, depending on direction. The PAN number does not change; the name on the record does. If you do not update it, your returns will keep failing the name-match.

The rest of the list

- Voter ID: correction of name and relationship details at the Electoral Registration Office, or online through the Election Commission's portal.
- Driving licence: name change at the RTO, with the decree and the updated Aadhaar.
- Bank and demat KYC: the branch will need the decree and the updated identity documents, in that order.
- Educational certificates and professional registrations: usually cannot be changed. Carry a name-change affidavit with the decree instead.
- Employment records: update the HR file, the nominee details and the emergency contact, and check whether your employer's group health cover still lists a spouse.

> **Sequence matters**
> Aadhaar first, then PAN, then the bank, then the passport. Each of the later documents wants the earlier one as proof, and doing them in the wrong order means being sent back twice.

CHAPTER 24

NRI marriages and cross-border cases

Which country's courts, whose law, and how a spouse abroad appears in an Indian courtroom.

Can an Indian court decide it?

Usually yes, and more often than people assume. Where the marriage was solemnised in India, or the parties last resided together in India, or the wife resides in India, an Indian court will generally have jurisdiction under the personal law statutes. The harder question is domicile, and the Supreme Court examined it in Sondur Gopal v. Sondur Rajini (2013) 7 SCC 426 — the answer turns on intention and fact, not merely on residence or a foreign passport. If one spouse has genuinely settled abroad and acquired a domicile of choice, an Indian decree may be challenged on that ground later. Take advice on jurisdiction before filing, not after.

How the spouse abroad participates

1. A power of attorney, executed and notarised abroad, and then apostilled or attested at the Indian embassy or consulate. An unattested POA will be rejected.
2. Video conference appearance, which several High Courts have permitted in matrimonial matters, usually on a separate application supported by the reason — distance, visa, cost, or a pending foreign proceeding.
3. A family member appearing with a POA, in appropriate cases.
4. If the spouse simply refuses to participate, service has to be effected properly — including through the court's substituted service where permitted — or the decree is vulnerable later.

A foreign decree, and whether it counts here

A divorce obtained abroad is not automatically effective in India. Under section 13 of the Code of Civil Procedure a foreign judgment is conclusive as to matters adjudicated, except in specified situations — including where it was not given by a court of competent jurisdiction, or where it is contrary to natural justice or to Indian public policy. Section 44A provides a faster enforcement route for decrees from reciprocating territories, but a matrimonial decree from such a territory is a separate question. In practice, if you were married in India and a foreign court dissolved the marriage, you may still need an Indian declaration — and if the foreign decree was obtained without proper notice to you, it can be challenged.

Three practical warnings

- A decree obtained abroad without the other spouse having a real opportunity to be heard is the most commonly challenged kind.
- Child custody orders made abroad are not self-executing in India. India is not a party to the Hague Convention on the Civil Aspects of International Child Abduction, so remedies are domestic and slow.
- Maintenance ordered abroad is hard to enforce in India unless there is a reciprocal arrangement or a fresh Indian order. A fresh application under section 144 BNSS against a spouse residing in India is often the more effective route.

PART EIGHT

Doing this well

The last part is about the parts that are not legal at all: who you hire, what is free, what the money looks like on the other side, and the mistakes that are made so often they are almost predictable.

CHAPTER 25

Choosing a lawyer, and being a good client

The right advocate will tell you things you do not want to hear. That is the test.

The twenty questions for a first meeting

1. How many mutual consent matters have you filed in this court in the last year?
2. Which of the courts available to me is currently moving fastest on these matters?
3. What is your fee, and exactly what does it cover — drafting, appearances, or both?
4. What triggers an extra charge?
5. Who in your office will actually appear, and will I meet them?
6. What is your realistic timeline for my facts, not the textbook timeline?
7. What are the three weakest points in my case?
8. If we file for a cooling-off waiver, what will you put in the application?
9. Should I file the maintenance application now or wait?
10. What documents do you need from me, in a list, today?
11. What should I not do on social media?
12. How will you keep me informed after each hearing?
13. What happens if the other side stops cooperating?
14. Is there any part of this I can do myself to reduce the cost?
15. Have you handled a case where a joint home loan had to be released?
16. What is your view on mediation in my situation?
17. Do you see any reason a court would refuse the waiver here?
18. What will the decree say about the settlement — annexed, or recorded in the order?
19. What do I need to do in the week after the decree?
20. If I wanted a second opinion, would that offend you?

Red flags

- A guarantee of a specific outcome, or of a specific number of months.
- A promise that your spouse "will have to pay" a figure before any disclosure has been filed.
- Pressure to file immediately, before the settlement is drafted.
- A fee that is quoted without any written scope.
- Encouragement to make a criminal complaint you do not actually have grounds for.
- Reluctance to put anything in writing.

How to be a client people fight for

Bring documents, not opinions. Answer messages within a day. Do not call on the morning of a hearing to add a fact. Keep one folder, physical and digital, named sensibly. Read what you sign. Ask "what does this sentence mean in practice" until you can explain it to someone else. And tell your advocate the bad facts early — the opposing side will find them anyway, and it is far better that your own lawyer is not surprised in a hearing.

CHAPTER 26

Free legal aid and mediation

Two things most people never ask about, both of which can save lakhs.

Free legal aid is a right, not charity

The Legal Services Authorities Act, 1987 created a national network — the National Legal Services Authority, State authorities, and a District Legal Services Authority in every district, sitting at the district court. Section 12 lists who is entitled to free legal services. It includes any woman or child, members of Scheduled Castes and Scheduled Tribes, victims of trafficking or of mass disaster, persons with disability, persons in custody, and industrial workmen — and, separately, persons whose annual income is below limits prescribed by the State Government.

That list matters because of its first entry: **any woman or child** is entitled to free legal aid regardless of income. If you are a woman reading this and cost is the thing stopping you from filing, go to the DLSA office at your district court and ask. Take your Aadhaar and whatever documents you have. There is also a national legal aid helpline on 15100.

What legal aid covers

Payment of court fees and process fees, drafting, and the services of an advocate. The quality varies by district, as it does everywhere — but a DLSA panel advocate who handles matrimonial matters weekly is often better than a private generalist. You can also ask the DLSA about the court-annexed mediation centre, which is usually free or nominal.

Mediation, honestly assessed

What mediation is good at	What mediation cannot do
Turning a money argument into a number both people can live with.	Produce a binding order on its own — a mediated settlement still needs to go before the court.
Designing a visitation calendar that two parents will actually follow.	Fix a marriage where one party is being coerced into terms.
Letting people say the things they need to say, once, in a room with a neutral person.	Substitute for protection where there is violence.
Producing the complete, written settlement that makes a cooling-off waiver possible.	Guarantee the other side will not change their mind afterwards.

How to prepare for mediation

1. Write your three non-negotiables and your three tradeables before you walk in.
2. Bring the numbers, not the narrative: income, expenses, school fees, EMIs.
3. Decide in advance what you will do if the offer is Rs. 2 lakh below your floor.
4. Do not bring family members whose presence turns a negotiation into an audience.
5. Ask for the settlement to be recorded in writing at the end of the session, even if it is signed later.

> **Lok Adalats**
>
> Lok Adalats, organised by the legal services authorities, can record settlements in matters that are compoundable or where the parties are free to settle. Court fees already paid are often refunded where a matter is settled there. For a mutual consent matter where everything is agreed, ask the DLSA whether your case can be listed — it is occasionally faster than the regular list.

CHAPTER 27

The money and mind reset

Two households on one income is the arithmetic nobody runs until it is running them.

The first ninety days

Before you agree to any settlement, sit down with your actual monthly numbers and run them twice: once for the life you are living now, and once for the life the settlement would buy. Rent, school fees, transport, insurance, help, food, medical, and the amount you need to save each month to stay solvent at sixty. A settlement that looks generous in court and leaves you unable to pay the electricity bill in month seven is not generous.

Decision	The mistake	What to do instead
Keeping the house	Taking the flat because of what it means, and then discovering the EMI is 70 per cent of one income.	Model the EMI against a single income, including maintenance and school fees. If it does not fit, sell and split — a smaller home you can afford beats a larger one you cannot.
Fighting for the car	Two people spending Rs. 80,000 in fees over a vehicle worth Rs. 4 lakh.	Value it, decide it in ten minutes, and spend the fees on the settlement drafting instead.
Taking monthly alimony	Choosing a monthly figure because it sounds larger than a lump sum, without accounting for tax and default risk.	Compare the after-tax present value of both. A monthly order that is not paid is worth nothing but a hearing date.
Borrowing for legal fees	A personal loan at 14 per cent to fund a three-year contest.	Ask about legal aid, court-annexed mediation, and a fixed-fee mutual consent package before borrowing anything.
Not rebuilding credit	Discovering two years later that a joint loan default is on your report.	Pull your credit report in month one, dispute anything wrong, and check it every six months until the loan is closed.

The mind, which is not a footnote

Divorce in India is a public event in a way it is not in many countries. Relatives have opinions. Neighbours have timelines. Workplaces are not always discreet. It is entirely normal to feel grief, rage, relief and shame in the same week, and it is entirely normal for that to last longer than the legal process.

Three practical things that help, from people who have been through it. Keep one person you can say the unedited version to, and do not use your lawyer for that job. Keep a routine that has at least one fixed point a day — a walk, a call, a class. And delay the three big irreversible decisions — selling the house, changing cities, quitting the job — until the decree, unless money forces your hand.

If it is heavier than that, treat it as a health matter. Tele-MANAS, the national tele-mental health programme, is free on 14416 and available in multiple languages. A counsellor is not a luxury in year one; they are the cheapest thing in the whole process.

CHAPTER 28

Twelve mistakes that cost people lakhs

Not one of these is exotic. Every one of them is common.

1. **Filing before settling.** A petition filed on an incomplete agreement converts every gap into a hearing.
2. **Signing a settlement with an open term.** "To be decided later" is an argument you have scheduled for a future you cannot afford.
3. **Withdrawing the criminal complaint before the money arrives.** Sequence is leverage. Money first, then withdrawal.
4. **Not listing the stridhan.** Without a list with weights and photographs, gold becomes a memory and a dispute.
5. **Ignoring the joint home loan.** The bank is not a party to your divorce. Your credit report will remember what your settlement forgot.
6. **Taking the house you cannot afford.** The most expensive emotional decision in Indian family law.
7. **Using the child as a messenger.** It damages the child, and it hands the other side evidence for a custody application.
8. **Changing jobs or hiding income during the proceedings.** Courts see the ITR, the Form 16 and the bank statement. Concealment produces an adverse inference and a higher order.
9. **Not taking certified copies of the decree.** Then discovering, at the passport counter, that a fresh copy takes three weeks.
10. **Believing a percentage formula for alimony.** There is no statutory formula. Anyone quoting one is guessing — and if you plan around it, you will be wrong in either direction.
11. **Skipping the waiver application.** Six months of waiting because nobody filed four pages is six months of your life.
12. **Not registering the decree or updating nominations.** In Uttarakhand, registration within sixty days of the decree becoming final is required. Everywhere, a nomination in an ex-spouse's name is still a nomination.

> **And the one that is not on the list**
>
> Making the other person's punishment the goal. It is the most expensive objective available in Indian family law, it is never fully achieved, and the bill for it is paid by whoever is standing closest — usually a child. The people who come out of this best are almost never the people who fought hardest. They are the people who decided early what they actually needed, wrote it down, and refused to be moved off it.

WORKSHEETS

Six pages to print and fill in

Every worksheet here exists because someone lost money, time or a relationship with their child by not writing that page down. Fill them in by hand, photograph them, and keep them in the same folder as your documents. Take the completed versions to your first meeting with an advocate or mediator.

Worksheet 1 — Settlement term sheet

Fill this in before you meet anyone. It becomes the skeleton of the memorandum of understanding.

Date of separation exact date		**Evidence of separation** documents you hold	
Permanent alimony amount, lump sum or monthly		**Payment date and mode** date, account	
Child support per child, per month		**Annual increase** percentage	
School fees who pays, directly to whom		**Medical costs** how shared	
Custody who the child lives with		**Visitation** the calendar, not the principle	
Stridhan list attached? date of return		**Household goods** who takes what	
Immovable property who keeps, who pays EMI		**Buyout** amount and date	
Joint loans who closes, by when		**Indemnity clause** included? yes / no	
Accounts and investments to be closed or divided		**Nominations** to be changed	
Cases to withdraw court, case number, CNR		**Deadline for withdrawal** date	
Confidentiality included? yes / no		**Breach consequence** penalty or revival	

Worksheet 2 — Asset and liability disclosure

This mirrors the affidavit of disclosure the court will require. Fill it in honestly; the other side will see it.

Head	Description	Value or outstanding	Document held
Immovable property			
Vehicle			
Bank balances			
Fixed deposits			
Mutual funds and shares			
Insurance (surrender value)			
Jewellery			
Other assets			
Home loan			
Vehicle loan			
Personal loan			
Credit card dues			
Informal borrowings			

Monthly expenses

Head	Amount (Rs.)	Head	Amount (Rs.)
Rent		Groceries and household	
Electricity, water, gas		Transport and fuel	
School fees		Medical and insurance	
Tuition and activities		Clothing	
Domestic help		Support to parents	
Loan EMIs		Other	
Total			

Worksheet 3 — Documents checklist

Tick each item as you collect it. Carry originals and one self-attested set of copies to every hearing.

Category	Document	Party A	Party B
Identity	Aadhaar		
Identity	PAN		
Identity	Passport		
Identity	Voter ID		
Marriage	Marriage / registration certificate		
Marriage	Wedding photographs and invitation		
Marriage	Affidavits from attendees (if unregistered)		
Separation	Rent agreement / lease		
Separation	Utility bills after the separation date		
Separation	Employer record of different city		
Income	Income tax returns, three years		
Income	Form 16 / salary slips, six months		
Income	Bank statements, twelve months		
Children	Birth certificates		
Children	School records		
Property	Sale deeds / allotment letters		
Property	Loan sanction letters		
Assets	FD, MF, demat statements		
Assets	Insurance policies		
Litigation	Copies of all pending cases with CNR		
Settlement	Signed memorandum of understanding		
Settlement	Affidavits of free consent		

Worksheet 4 — Case tracker

Fill one row after every hearing. Ask your advocate for these four things every time.

Date	What was filed or argued	What the court ordered	Next date and action

Payment ledger

Keep this whether you pay or receive. It is the only evidence that matters in an enforcement hearing.

Date due	Amount due	Date received	Amount received	Mode and reference

Worksheet 5 — Two-household budget

Run your current numbers against the numbers the settlement would produce. If the second column does not work, the settlement does not work.

Monthly	Now (Rs.)	After the settlement (Rs.)
Income (salary, business, other)		
Maintenance received		
Maintenance paid		
Rent or EMI		
School fees and activities		
Household and groceries		
Transport		
Medical and insurance		
Loan repayments		
Savings and investments		
Surplus or shortfall		

The three decisions to defer

Decision	Decide by (date)	What has to be true first
Sell or keep the house		
Move city or change job		
Any large borrowing		

Worksheet 6 — Twelve-month parenting calendar

Fill in the month, then the festivals. A calendar both parents keep is worth more than any clause.

Month	Weekdays with	Weekends with	Festival or occasion	Handover time
January				
February				
March				
April				
May				
June				
July				
August				
September				
October				
November				
December				

Fixed points

Item	Agreed arrangement
School drop-off and pick-up	
Emergency contact at school	
Video call window	
Child's birthday	
Medical decisions	
Travel outside the city	
Disagreement: first step	

Glossary of the terms you will hear

Term	What it means
Affidavit of disclosure	The sworn statement of income, assets, liabilities and expenses that both parties file in a maintenance proceeding, following Rajnesh v. Neha.
CNR number	The unique case number on the e-courts system. Use it to track your case yourself.
Cooling-off period	The six months between the first and second motions in a mutual consent divorce, which a court may waive.
Decree	The court's formal order. A decree of divorce dissolves the marriage from its date.
Ex parte	An order passed in the absence of the other party.
First motion	The first joint appearance in a mutual consent divorce, where statements are recorded.
Interim maintenance	Money ordered during the proceedings, before the final order.
Lok Adalat	A people's court organised by the legal services authorities, where settlements can be recorded.
Mubarat	Dissolution of a Muslim marriage by mutual agreement.
Pendente lite	During the litigation — as in maintenance pendente lite.
Permanent alimony	Maintenance ordered at or after the decree.
Quashing	The High Court setting aside a criminal proceeding, using its inherent powers under section 528 BNSS.
Second motion	The second joint appearance, at which consent is reconfirmed and the decree is passed.
Shared household	The household where the aggrieved woman has lived in a domestic relationship, as defined in the Protection of Women from Domestic Violence Act.
Stridhan	Property a woman receives before, during or after marriage, which belongs to her absolutely.
Substituted service	Service of notice by an alternative method — publication, affixing — where normal service fails.
Welfare of the child	The paramount test in every custody decision, overriding the claims of either parent.

Sources

Every rule, figure and judgment in this book was checked against the statute, the official portal or the court's own order in October 2026. The principal sources:

Statutes

- Hindu Marriage Act, 1955 — sections 10, 11, 12, 13, 13B, 14, 19, 24, 25, 26, 28.
- Special Marriage Act, 1954 — sections 27, 27A, 28, 29, 34, 36, 37.
- Divorce Act, 1869 — sections 10, 10A, 36, 37, 41 to 44.
- Parsi Marriage and Divorce Act, 1936.
- Hindu Adoptions and Maintenance Act, 1956 — sections 18, 20, 23.
- Hindu Succession (Amendment) Act, 2005.
- Guardians and Wards Act, 1890 — sections 7, 9, 17, 25.
- Family Courts Act, 1984 — sections 5, 6, 7, 8, 9, 11, 13.
- Protection of Women from Domestic Violence Act, 2005 — sections 2, 12, 17 to 23, 26, 31.
- Bharatiya Nyaya Sanhita, 2023 — sections 85, 86.
- Bharatiya Nagarik Suraksha Sanhita, 2023 — section 144, section 528.
- Bharatiya Sakshya Adhiniyam, 2023 — section 63.
- Legal Services Authorities Act, 1987 — section 12.
- Code of Civil Procedure, 1908 — sections 13, 44A.
- Dissolution of Muslim Marriages Act, 1939; Muslim Women (Protection of Rights on Marriage) Act, 2019.
- Uniform Civil Code, Uttarakhand, 2024, with the 2025 Rules, the 2026 Amendment Ordinance and the 2026 Amendment Act.

Judgments

- Amardeep Singh v. Harveen Kaur, (2017) 8 SCC 746.
- Amit Kumar v. Suman Beniwal, (2023) 17 SCC 648.
- Misha Somani v. Rituraj Somani, Civil Appeal No. 801 of 2026, Supreme Court, order dated 2 February 2026.
- Shilpa Sailesh v. Varun Sreenivasan, Supreme Court, judgment dated 1 May 2023.
- Sureshta Devi v. Om Prakash, (1991) AIR 1992 SC 1904.
- Rajnesh v. Neha, (2020) 4 SCC 153.
- Poongodi v. Thangavel, (2013).
- Shantha v. B. G. Shivananjappa, (2005) 4 SCC 468.
- Pratibha Rani v. Suraj Kumar, (1985).
- Satish Chander Ahuja v. Sneha Ahuja, (2021) 1 SCC 414.
- Yashita Sahu v. State of Rajasthan, (2020).
- Sondur Gopal v. Sondur Rajini, (2013) 7 SCC 426.
- Arnesh Kumar v. State of Bihar, (2014).
- Princess Maheshwari Devi of Pratapgarh v. CIT, (1984) 147 ITR 258 (Bombay High Court).
- ACIT v. Meenakshi Khanna, ITAT Delhi.
- Allahabad High Court directions on enforcement of maintenance, October 2026.

- Madras High Court on waiver under section 10A of the Divorce Act, September 2025.

Official data and portals

- Department of Justice, family court pendency dashboard — 11,95,738 cases pending across family courts.
- Family court data for Kerala, obtained under the Right to Information Act and reported in June 2026 — 35,238 divorce petitions in 2025.
- Allahabad High Court RTI response on Uttar Pradesh family court pendency, reported in June 2026 — 4,07,130 cases at the end of 2025.
- Passport Seva, document advisor for re-issue — divorce requirements.
- e-courts services portal, for CNR tracking and e-filing.
- National Legal Services Authority, legal aid eligibility and helpline.
- Uttarakhand Uniform Civil Code portal, ucc.uk.gov.in.
- Tele-MANAS, national tele-mental health programme, helpline 14416.

A final note

Law changes. Sections are amended, judgments are reviewed, States legislate. The structure in this book will hold for years; the specific numbers in a few places will not. Before you file, confirm the current position with your advocate, the free legal aid office at your district court, or the court's own website. If something here has been overtaken by a later amendment, the statute wins — always.